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FUNDAMENTAL RIGHTS IN THE 1973 CONSTITUTION OF PAKISTAN (ARTICLES 8—28)

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INTRODUCTION

- The 1973 Constitution of Pakistan is a cornerstone document that defines the political, legal, and social framework of the state.
- One of its most important aspects is the **guarantee of fundamental rights** to its citizens, ensuring protection of individual liberty, human dignity, and social justice.
- **Articles 8 to 28** of the Constitution lay down the **Fundamental Rights**
- These are enforceable by the **judiciary under Article 199 (High Courts) and Article 184(3) (Supreme Court in case of public interest).**





CONSTITUTIONAL BASIS: ARTICLES 8–13

- **Article 8: Laws Inconsistent with or in Derogation of Fundamental Rights**
 - It means that if a law (made by the government or parliament) **goes against or violates any of the Fundamental Rights** will **not be valid or enforceable**.
- **Article 9: Security of Person**
 - No person shall be deprived of life or liberty except in accordance with law.
- **Article 10: Safeguards as to Arrest and Detention**
 - Right to be informed of the grounds of arrest.
 - Right to legal representation.
- **Article 11: Slavery, Forced Labor, and Child Labor**
 - Prohibits slavery and all forms of forced labor.
 - Prohibits child labor under the age of **14 years** in factories & mining employment.
- **Article 12: Protection against Retrospective Punishment**
 - No person shall be punished for an act that was not a crime at the time it was committed.
- **Article 13: Protection against Double Jeopardy and Self-Incrimination**
 - No person shall be prosecuted or punished for the same offence more than once.





CONSTITUTIONAL BASIS: ARTICLES 14–17

- **Article 14: Inviolability of Dignity of Man and Privacy of Home**
 - Declares the dignity of man as **inviolable**.
 - Guarantees the privacy of the home.
 - Protection against torture in custody.
- **Article 15: Freedom of Movement**
 - Citizens can move freely throughout Pakistan and reside anywhere.
- **Article 16: Freedom of Assembly**
 - It grants citizens the right to peaceful assembly, like for Protests, Rallies, Meetings, and Public events.
 - It is also subject to reasonable restrictions to ensure public order, security, morality, and others' rights.
- **Article 17: Freedom of Association**
 - Right to form associations or political parties.
 - Restrictions may apply for national security or morality.





CONSTITUTIONAL BASIS: ARTICLES 18–23

- **Article 18: Freedom of Trade, Business, or Profession**
 - Every citizen can enter any lawful profession or trade, subject to regulation.
- **Article 19: Freedom of Speech**
 - Free expression is guaranteed but subject to restrictions (security, public order, decency, etc.).
- **Article 20: Freedom of Religion**
 - Every citizen has the right to profess, practice, and propagate their religion.
- **Article 21: No Taxation for Religious Purposes**
 - No one can be compelled to pay taxes for the support of a religion they do not profess.
- **Article 22: Safeguards in Educational Institutions**
 - No citizen can be forced to receive religious instruction against their beliefs.
 - Protects minority rights in education.
- **Article 23: Right to Acquire Property**
 - Every citizen has the right to acquire, hold, and dispose of property in Pakistan.





CONSTITUTIONAL BASIS: ARTICLES 24–28

- **Article 24: Protection Against Compulsory Acquisition**
 - Property cannot be taken without lawful authority and proper compensation.
- **Article 25: Equality of Citizens**
 - All citizens are equal before the law and are entitled to equal protection.
 - Special provisions for the protection of women and children are allowed.
- **Article 26: Non-Discrimination in Access to Public Places**
 - Equal access to public places for all, regardless of caste, creed, sex, etc.
- **Article 27: Safeguards Against Discrimination in Public Service**
 - Equal opportunity in public service jobs.
 - Permits affirmative action to uplift disadvantaged groups.
- **Article 28: Preservation of Language and Culture**
 - Citizens and minorities have the right to preserve and promote their language, script, and culture.



CONCLUSION

- Articles 8–28 of the 1973 Constitution form the **core of Pakistan's human rights legal framework**.
- They provide a constitutional guarantee against arbitrary action and uphold the values of **dignity, freedom, and equality**.
- However, continuous civic awareness and judicial activism are essential to fully realize their potential in practice.





Thank you for your time and attention!

Hopefully, I will see you in the next class. Until then, take care, & have a great day!

